

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2025CUPP055353: STEVEN R VAN HOOK vs CHANNEL ISLANDS HOA, et al.

09/14/2026 in Department 42

Demurrer to Second Amended Complaint

Motion: Demurrer by HOA Defendants (Opposed)

Tentative Ruling:

In the interest of judicial economy, the Court exercises its discretion to consider the late opposition, and considers the HOA Defendants' reply brief. The Court appreciates the efforts that went into getting the reply brief on file in a short amount of time.

The demurrer is sustained without leave to amend as to the First Cause of Action for Breach of Fiduciary Duty & Statutory Violations. The allegations in the SAC are that Plaintiff rented a unit. He alleges he voluntarily left before he was to be evicted. He does not allege that he owned the unit or that he was a member of a common interest development. (Civ. Code, §4160.) As a result the Davis-Stirling Common Interest Development Act (Civ. Code, § 4000 et seq.) does not apply and no fiduciary duty is imposed on the HOA Defendants. "A homeowners association has a fiduciary relationship with its members-at least with respect to dealing with the homeowner's unit." (*Ostayan v. Nordhoff Townhomes Homeowners Assn., Inc.*, 110 Cal. App. 4th 120, 126 (2003).) Plaintiff has not alleged such ownership/membership, and "a landlord and tenant do not generally stand in a fiduciary relationship" (*Frances T. v. Village Green Owners Assn.* (1986) 42 Cal.3d 490, 513.)

Leave to amend is not granted because Plaintiff has not articulated other facts or theories that could be pled to adequately allege a fiduciary relationship between Plaintiff and the HOA Defendants. If Plaintiff has such facts, he must articulate them at the hearing.

The demurrer is overruled as to the Second Cause of Action for Negligence/Premises Liability. Plaintiff has pled that the HOA Defendants were responsible for maintenance and repair of the common area-plumbing and structure (SAC at ¶2); that they failed to remediate toxic mold, structural decay and breaches; and that such conduct led to Plaintiff's personal and property damage (SAC at 4:14-18). (*Moses v. Roger-McKeever* (2023) 91 Cal.App.5th 172, 177-178.) These allegations are sufficient to state a claim.